Mr. DuBois
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DAILY REPORT

I. Evidence

The defense of Terberger began today with the defendant himself taking the stand immediately. His testimony began with a recital of his early life, educational background, political point of view and his industrial career, finally culminating in his association with the Flick Concern. Prior to coming to Maxhuette in 1937, he was Steinbrinck's right-hand man in the Berlin office of the Concern and was permitted to enter the Vorstand of Maxhuette upon the engagement of the defendant Burkart. At Maxhuette, primarily his duties related to purchases and sales. His testimony today consisted in the main of detailing the various functions of the different leading officials connected with the Maxhuette plant. Terberger admitted that he was appointed Deputy Chairman of the Vorstand. Karl Raabe who was the Chairman of the Vorstand spent the majority of his time during the years 1941 - 43 at Rombach but returned in 1943 to resume his position as plant leader. Terberger's testimony then is directed to a survey of the types of production in the various plants which make up the Maxhuette complex and to an explanation of the numbers of prisoners of war and foreign workers employed in those plants. Terberger admitted that he knew of the employment of such persons but denies that prisoners of war were used in the direct manufacture of finished armament products. The Prosecution conceded that there was no charge of the mistreatment, as distinguished from utilization, of either foreign workers or prisoners of war at two of the plants within the Maxhuette orbit.

II. Law and Procedure

The Prosecution noted on the record that the Basic Information Bulletins were not intended to serve any purpose other than to acquaint the Tribunal with general data which would enable the Tribunal to understand more readily the evidence being submitted. These Bulletins were to be regarded as serving the same function as the opening address.

The Prosecution stated further that it had submitted documentary evidence on whatever information contained in the Bulletins which it thought pertinent to its case-in-chief.

III. Developments Outside Court

None.